SUPREME COURT OF INDIA

APPELLATE JURISDICTION · DIVISION BENCH (2 JUDGES)

Writ Petition (Civil) No. 422 of 1994 **CNR: SCIN010004221994**

Date of Pronouncement: 07 October, 1994 *Citation: (1994) 6 SCC 632*

CORAM: Hon'ble B.P. Jeevan Reddy & S.C. Sen, JJ.

Petitioner / Appellant: R. Rajagopal @ R.R. Gopal & Nakkheeran Publications

- VERSUS -

Respondent / State: State of Tamil Nadu & Others

SUBJECT: MEDIA LAW, FREEDOM OF SPEECH & PRIVACY **AUTHORITY: Good Law (Binding Freedom of Press Landmark)**

JUDICIAL RATIO DECIDENDI & OPERATIVE PRINCIPLES:

Citizens have a right to safeguard the privacy of their home, family, and person. However, once a matter becomes a matter of public record including court proceedings, the right to privacy no longer subsists and the press can publish without prior censorship.

STATUTORY PROVISIONS INTERPRETED: Article 19(1)(a), Article 19(2), Article 21, Section 499 IPC

FINAL DISPOSITION: PRIOR RESTRAINT ON PRESS PUBLICATION REFUSED

EXECUTIVE SUMMARY:

Landmark ruling laying down that public officials cannot obtain prior injunctions to suppress press publications relating to their official acts. Right to privacy does not extend to information contained in public records.

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